> *their property, to inflict injury upon the community."* *Mugler* v. *Kansas,* 123 U. S. 623, 668–669.

Thus, there is no "taking" where a city prohibits the operation of a brickyard within a residential area, see *Hadacheck* v. *Sebastian,* 239 U. S. 394 (1915), or forbids excavation for sand and gravel below the water line, see *Goldblatt* v. *Hempstead,* 369 U. S. 590 (1962). Nor is it relevant, where the government is merely prohibiting a noxious use of property, that the government would seem to be singling out a particular property owner. *Hadacheck, supra,* at 413.[8]

The nuisance exception to the taking guarantee is not coterminous with the police power itself. The question is whether the forbidden use is dangerous to the safety, health, or welfare of others. Thus, in *Curtin* v. *Benson,* 222 U. S. 78 (1911), the Court held that the Government, in prohibiting the owner of property within the boundaries of Yosemite National Park from grazing cattle on his property, had taken the owner's property. The Court assumed that the Government could constitutionally require the owner to fence his land or take other action to prevent his cattle from straying onto others' land without compensating him.

> "Such laws might be considered as strictly regulations of the use of property, of so using it that no injury could result to others. They would have the effect of making the owner of land herd his cattle on his own land and of making him responsible for a neglect of it." *Id.,* at 86.

The prohibition in question, however, was "not a prevention of a misuse or illegal use but the prevention of a legal and essential use, an attribute of its ownership." *Ibid.*

Appellees are not prohibiting a nuisance. The record is

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[8] Each of the cases cited by the Court for the proposition that legislation which severely affects some landowners but not others does not effect a "taking" involved noxious uses of property. See *Hadacheck; Miller* v. *Schoene,* 276 U. S. 272 (1928); *Goldblatt.* See *ante,* at 125–127, 133.